



POLICE DEPARTMENT

September 4, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202003690 (Incident Date: May 29, 2020) regarding Detective Raul Torres,
Tax No. 958127 (DADS No. 2022-26359)

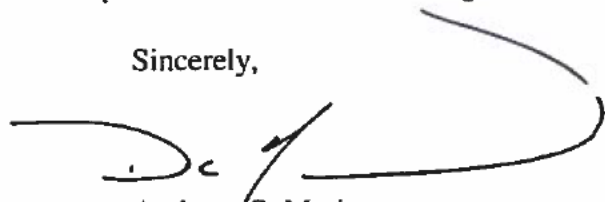
Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202003690, pertaining to Detective Raul Torres. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue Charges and Specifications against Detective Torres would be detrimental to the Police Department's disciplinary process.

In this matter, the CCRB seeks to serve Charges and Specifications against Detective Torres for four counts of New York Penal Law § 110/120.00, Attempted Assault in the Third Degree. After reviewing the evidence, the Police Commissioner finds that Detective (then Police Officer) Torres' use of a conducted electrical weapon (CEW) against the actively resisting complainant was within guidelines and, more importantly, did not rise to the level of criminality. The Internal Affairs Bureau conducted a parallel investigation into the underlying use of force in this case and exonerated Detective Torres' CEW use against the complainant.

Therefore, because of the parallel investigation and as provided for within the 2012 Memorandum of Understanding between the CCRB and the New York City Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, intends to impose no disciplinary action for the allegations of Attempted Assault in the Third Degree.

Sincerely,



Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office

COURTESY • PROFESSIONALISM • RESPECT

Website: <http://nyc.gov/nypd>



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
www.nyc.gov/ccrb



September 10, 2024

The Honorable Edward A. Caban
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB v. Detective Raul Torres
Disciplinary Case No.: 2022-26359

Commissioner Caban:

I am writing in response to the letter from Deputy Chief Anthony S. Marino, dated September 4, 2024, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) that you “determined that to pursue Charges and Specifications against Detective (formerly Police Officer) Torres would be detrimental to the Police Department’s disciplinary process” and you intend to retain jurisdiction over this matter and “impose no disciplinary action for the allegations of Attempted Assault in the Third Degree.” Pursuant to Paragraph 2 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department (hereinafter referred to as the “MOU”), I am responding to Deputy Chief Marino’s notification.

While CCRB cannot deny that you are permitted to retain jurisdiction in matters such as this one where there was a parallel or related criminal investigation, CCRB requests that you allow these Charges and Specifications to be served on Detective Torres and permit CCRB to prosecute this case. We disagree with your finding that Detective Torres’ misconduct and actions do “not rise to the level of criminality.” The Charges and Specifications in this case were filed using the crime exception and comport with the statutory requirements for Attempted Assault in the Third Degree. It is undisputed that Detective Torres used his conducted electrical weapon (CEW) against the complainant. This is evidenced in numerous videos and in the NYPD’s Taser Data Sheet for this incident. After reviewing the evidence and circumstances of this incident, CCRB determined that Detective Torres’ actions were not within guidelines nor justified and this misconduct was substantiated by the Board.

While the “Internal Affairs Bureau conducted a parallel investigation into the underlying use of force in this case and exonerated Detective Torres’ CEW use against the complainant,” this does not preclude CCRB from pursuing an investigation and subsequent prosecution for misconduct committed by members of service and CCRB would request that you allow us to pursue the Charges

and Specifications against Detective Torres. By not taking disciplinary action, Detective Torres is not being held accountable for this substantiated misconduct.

While it is recognized that the Police Commissioner is the final arbiter regarding disciplinary actions against members of service, CCRB disagrees with your intention of retaining jurisdiction in this matter and imposing no disciplinary action for the misconduct in this case. CCRB requests that you allow our agency to pursue the prosecution of these Charges and Specifications against Detective Torres.

Respectfully submitted,

Andre Applewhite

p.p., Andre Applewhite, Chief Prosecutor for
Jonathan Darche, Executive Director
NYC Civilian Complaint Review Board



POLICE DEPARTMENT

September 11, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

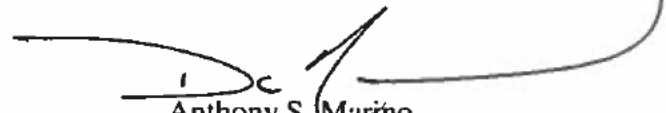
Re: CCRB Case No. 202003690 (Incident Date: May 29, 2020) regarding Detective Raul Torres,
Tax No. 958127 (DADS No. 2022-26359)

Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated September 10, 2024, concerning the Civilian Complaint Review Board ("CCRB") case involving Detective Raul Torres. Nevertheless, he maintains that it would be detrimental to the Police Department's disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of Detective Torres for the reasons expressed in my September 4, 2024 letter.

Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, directs that no disciplinary action be imposed for the allegations of Attempted Assault in the Third Degree.

Sincerely,



Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office